



GOVERNANCE

COMPARISON OF CONSTITUTION

MODULE - 23

CHINESE CONSTITUTION

1 The first Constitution of People's Republic of China was promulgated in 1954.

2 Its main objective was to build socialism step by step.

3 It did not follow the socialism of Soviet but rather developed its own version under the influence of Mao Tse-tung came to be known as Maoism.

4 This Constitution was in force till 1975 when it subjected to revision.

5 The new Constitution was a brief document, and it enumerated the achievements of the previous Constitution.

6 There was no major deviation and it followed the path laid by the Chairman Mao.



CHINESE CONSTITUTION

7 Once again this Constitution was subjected to revision soon in 1978.

8 This Constitution was fairly liberal than the earlier ones, but it did not affect any major changes to the old setup. This was old wine in new bottle.

9 Under the leadership of Deng Xiaoping, the Constitution was again revised in the year 1982 and it has been continuing till the present.

10 The preamble elaborates the achievements of the communist state till then.

11 It took major deviation in Mao's views. Economy was given precedence.



SALIENT FEATURES OF CHINESE CONSTITUTION

The important aspects of the 1982 Constitution are as follows:

a WRITTEN CHARACTER

- 1 Like the previous other constitutions, it is also a written document. It presently consists of 138 articles.
- 2 Hence it is not so brief like the 1975 Constitution and even bigger than the 1954 Constitution, which contained 116 articles.



SALIENT FEATURES OF CHINESE CONSTITUTION

b FLEXIBLE

1 It is fairly easier to amend the constitution. The amendment can be moved either by the standing committee or by one fifth of the members of the Congress.

2 Once approved, it is deemed passed if two-third of the members of the Congress give approval.

3 Since it is a one party, communist-dominated Congress, it is easy for the amendment to be approved and passed.



SALIENT FEATURES OF CHINESE CONSTITUTION

c UNITARY STATE

- 1 The Constitution provides for a strong unitary state where people of all nationality come under single state.
- 2 There is no provision of creation of autonomous provinces or states in the style of India or Canada, though limited powers to provinces has been envisaged.
- 3 There are 21 provinces, 5 autonomous regions and 2 cities, but all these are mere names as the central government has complete control over them.
- 4 The government in the provinces act as agents of the centre.



SALIENT FEATURES OF CHINESE CONSTITUTION

d PEOPLE'S DEMOCRATIC DICTATORSHIP

- 1 China cannot be categorized either as a parliamentary form or a Presidential form even though it has some of the features of both.
- 2 It is a republic state headed by the President who is just a nominal head performing ceremonial functions.
- 3 The real executive power lies with the Prime Minister who heads the state council which is responsible to the National people's Congress which is an elected body.



SALIENT FEATURES OF CHINESE CONSTITUTION

d PEOPLE'S DEMOCRATIC DICTATORSHIP

- 4 The democratic character comes from the fact that the Prime Minister cannot become a dictator as he is given only two terms of totally 10 years.
- 5 But the dictatorship character arises because the state council is ultimately controlled by the communist party of China.
- 6 The chairman of the party holds all the power.



SALIENT FEATURES OF CHINESE CONSTITUTION

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FUNDAMENTAL RIGHTS

- 1 The citizens are guaranteed economic, social, political, cultural, civil and personal rights and liberties.
- 2 They also enjoy equality before law and equal protection from it.
- 3 Right to education, right to get elected, freedom of speech and expression, association, freedom of religion, etc., are guaranteed to the people. There is also no discrimination based on sex.



SALIENT FEATURES OF CHINESE CONSTITUTION

e FUNDAMENTAL RIGHTS

4 But all these rights are curtailed by one Article 51, which says all these rights should not violate principles of the state, community and of other citizens

5 This article thus gives blanket power to the state to control the fundamental freedom of the citizens.

6 Apart from rights, there is also set of important duties like joining militia, pay tax, practice family planning, etc., which has to be carried out by every single person.



SALIENT FEATURES OF CHINESE CONSTITUTION

f

SOCIALIST STATE

- 1** Article 1 declares that China is a socialist state. This is interpreted ideology of Marx, Engels and Lenin by Mao
- 2** The Chinese society is led by working class which is comprised of alliance of both workers and peasants.
- 3** This alliance is against the enemies- the feudalists, the imperialists and the bureau-capitalists.
- 4** All power is given to the people which is exercised under the guidance of the communist party of China.



SALIENT FEATURES OF CHINESE CONSTITUTION

g UNICAMERAL LEGISLATURE

- 1 The National People's Congress forms the legislature of the Chinese state.
- 2 NPC along with the standing committee carries out the legislative functions of the state.
- 3 It is elected for a period of 5 years, and it is the sole law-making body in the country.
- 4 It has power to appoint all important positions from Prime Minister, President and to judicial officers, etc., it has also been given power to remove these persons.
- 5 Though it may sound impressive, all these are only formal power.
- 6 In practice, the NPC acts according to the direction of the communist party.



SALIENT FEATURES OF CHINESE CONSTITUTION

h JUDICIARY

- 1 The judiciary is completely different from the western systems.
- 2 The Supreme People's court is the apex court which guarantees the socialist legality. It has both appellate and original jurisdiction.
- 3 The judicial structure is basically pyramidal, where the local people's court forms the base and the Supreme Court sits at the Apex.

- 4 These courts too come under the democratic dictatorship system and is controlled by the dictates of the communist party of China.



JAPANESE CONSTITUTION

INTRODUCTION

1 The present Constitution also known as 'MacArthur Constitution' is mostly continuation of the older Meiji Constitution.

2 It differs from the older in some crucial important aspects.

3 The Japanese Constitution is the only document to be called the 'peace document' of the world.

4 Though it was a post-war gift by the Americans, it makes Japan a demilitarized state and a democracy.



SALIENT FEATURES OF THE JAPANESE CONSTITUTION

The following are the salient features of the Japanese constitution:

a DOCUMENT OF PEACE

- 1 It openly renounces war. It also says Japan will not maintain any standing armed forces.
- 2 The preamble declares that Japan is a peace-loving country and strives for peace in World.
- 3 Though there is no armed forces, the Constitution provides for setting up self-defence forces to protect national interest.



SALIENT FEATURES OF THE JAPANESE CONSTITUTION

b SOVEREIGNTY OF PEOPLE

- 1 The older Constitution vested the power on the monarch. It held imperial sovereignty and people had no power.
- 2 The present Constitution restores democracy and gives back power to the people.
- 3 The people are thus made sovereign and they elect their representatives to the diet to voice their concerns.
- 4 The emperor is made symbolic and has no power. The government derives power from the people as stated in the preamble.



SALIENT FEATURES OF THE JAPANESE CONSTITUTION

C UNITARY SYSTEM

- 1 Unlike the United States, it is not a federal state. All powers are held by the central government and there is no distribution of powers between the centre and the provinces.
- 2 Though there are separate local, provincial assemblies they all derive power from the laws passed by the parliament and not from the constitution.



SALIENT FEATURES OF THE JAPANESE CONSTITUTION

d

RIGID

- 1 Like the United States, it is difficult to amend the constitution.
- 2 Apart from two-third majority in the parliament, it has also to be ratified by the people in a special referendum.
- 3 Japanese Constitution has not been amended even once.



SALIENT FEATURES OF THE JAPANESE CONSTITUTION

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LIMITED JUDICIAL REVIEW

- 1** The Supreme Court is the last resort to validate the law against the violation of the constitution.
- 2** The Constitution thus has specifically provided for judicial review.
- 3** But the Supreme Court has not used this power like its counterpart in the United States, it is due to the fact that the conduct of the judges is subject to review after 10 years by the people.
- 4** The rights and liberties of the people are thus protected by the Constitution by keeping judicial review as a check on the executive and legislature.



SALIENT FEATURES OF THE JAPANESE CONSTITUTION

f PARLIAMENTARY FORM OF GOVERNMENT

- 1 Japan follows British type of system, where the monarch is simply a figurehead and the actual power is vested in the Prime Minister and his cabinet.
- 2 The parliament can pass a no-confidence motion to remove the government.
- 3 The Prime Minister and his cabinet are responsible to the diet.



FRENCH CONSTITUTION

INTRODUCTION

- 1 French Constitution is different from various others in the world.
- 2 From the French revolution in 1789, it has undergone numerous changes, from becoming a republic to directorate under Napoleon and once again ruled by Bourbons, and now finally a democratic republic.
- 3 In these years, France has seen numerous regime changes and number of constitutions. Thus extreme political changes has given France a new Constitution.
- 4 The first republic was inaugurated in 1792. It was comparable to the traditional American or the British system of government having a cabinet system.



FRENCH CONSTITUTION

INTRODUCTION

5 The powers were separated between the institutions. The powers of monarchy was also severely cut down.

6 A new Constitution was adopted in 1793 giving more powers to the assembly which was to be elected directly by the people.

7 This Constitution was once again replaced in 1799 with Constitution of the Consulate giving powers to Napoleon Bonaparte.

8 He once again issued another Constitutional Charter of 1814 restoring divine rights of the Monarch.



FRENCH CONSTITUTION

INTRODUCTION

9 Napoleon's regime was replaced by monarchy of Louis-Phillipe, and new Constitutional Charter of 1830 was adopted. This gave limited powers to the Monarch.

10 People were not satisfied and rose against this regime and overthrew it.

11 The National Assembly adopted a new Constitution in 1848 making France a republic once again.

12 This period from 1848 till fall of the regime in 1870 is called as the Second Republic.



FRENCH CONSTITUTION

INTRODUCTION

- 13** Once again, effort was taken to form a new constitution. This Constitution was very rigid, it created a republic, and made sure that this form of government could not be changed even by constitutional amendment.
- 14** This 'Third Republic' which lasted till 1940 is considered to be the longest in the French republican government history.
- 15** President Petain assumed despotic powers bring the third republic to an end.
- 16** The new Constitution called the 'Fourth Republic' was adopted in 1946 and did not last more than 12 years.
- 17** This gave enormous powers to the parliament and made the President weaker and subject to control by the parliament.



FRENCH CONSTITUTION

INTRODUCTION

- 18 The final and present Fifth Republic was created under the leadership of Charles de Gaulle.
- 19 The National Cabinet was assembled and the new Constitution was drafted by Debre.
- 20 It was presented to the people who gave acceptance to the Constitution in the referendum.



SALIENT FEATURES OF THE FRENCH CONSTITUTION

The following are the salient features of the Fifth Republic constitution:

a WRITTEN AND ENDORSED CONSTITUTION

1 It is a brief, written document presently having 92 articles. It was written by a constituent committee headed by de Gaulle.

2 It was first endorsed by the cabinet, then by the parliament.

3 Finally, people overwhelmingly adopted the Constitution in the referendum.

4 The Constitution has given immense power to the President who is elected by the people.



SALIENT FEATURES OF THE FRENCH CONSTITUTION

a WRITTEN AND ENDORSED CONSTITUTION

- 5 The Constitution has given immense power to the President who is elected by the people.
- 6 He is vested with the powers of the state and can deal with any crisis within the country or abroad.
- 7 Thus President is the actual head of the government as well as the formal head of the state.



SALIENT FEATURES OF THE FRENCH CONSTITUTION

b RIGID

- 1** Unlike the Indian Constitution, which has provision to amend the Constitution easily, amending French Constitution is quite a task.
- 2** It does have provision to amend the Constitution, but certain conditions have to be met.
- 3** The bill will be proposed by the President to the premier and to the members of the parliament.
- 4** Both houses of the parliament should pass the bill identically, and the bill becomes definitive after the approval from a referendum.



SALIENT FEATURES OF THE FRENCH CONSTITUTION

b

RIGID

5 The President if so wishes can cancel the referendum and instead submit the bill to the joint session of the parliament in which it has to be passed. And no amendment is possible when integrity of the territory is in question.

6 Also the republican nature of the Constitution cannot be amended.



SALIENT FEATURES OF THE FRENCH CONSTITUTION

c UNITARY SYSTEM

- 1 French Constitution creates a unitary system. This is rooted in the French constitutional history where power is biased towards the centre.
- 2 The centre is more powerful than the British union.
- 3 There does exist local governments at various levels in France.

- 4 The territory is divided into 'departments' and these are further divided into cantons, arrondissements and communes.



SALIENT FEATURES OF THE FRENCH CONSTITUTION

c UNITARY SYSTEM

5 They have restricted powers, and this comes from acts of parliaments and not from the constitution.

6 These local governments are nothing but the agents of the centre and are subjected to its control.

7 Thus French system is more rigid and centralised than its British counterpart.



SALIENT FEATURES OF THE FRENCH CONSTITUTION

d SEPARATION OF POWERS

- 1** The most important aspect of the Fifth Republic is that it has separated the executive and legislative institutions, but has made the executive accountable to the legislature through the concept of ministerial responsibility.
- 2** The Cabinet functions under the Prime Minister, but the President has the overall control.
- 3** The cabinet members cannot be members of the legislature and if so they are, they should resign to enter into the Government
- 4** Though the cabinet is not from the parliament, it is accountable to it.



SALIENT FEATURES OF THE FRENCH CONSTITUTION

d SEPARATION OF POWERS

5 Though the President has overall control, he is not directly accountable to the parliament, only the cabinet headed by the Prime Minister is accountable to it.

6 The legislature may pass a vote of no-confidence in the government, and in such case the government has to resign.



SALIENT FEATURES OF THE FRENCH CONSTITUTION

e QUASI-PRESIDENTIAL GOVERNMENT

- 1 Against the quasi-parliamentary form, French system is more of a quasi-Presidential type since authority of the President is far wider than of the Prime Minister.
- 2 He is not a titular head like his British counterpart, rather he is more like the American President.
- 3 The French President appoints the Prime Minister and other ministers on recommendation of the Prime Minister.
- 4 He chairs the cabinet meetings and thus makes his wishes get adopted by the government.



SALIENT FEATURES OF THE FRENCH CONSTITUTION

e QUASI-PRESIDENTIAL GOVERNMENT

5 But he is not responsible, only the Prime Minister and his cabinet are accountable to the parliament

6 The President has also been given wide veto powers.

7 His position is strengthened by his 5-year-long tenure and his election by the people. His removal too is a difficult process to be followed.



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